

STATE OF NEW YORK

8358--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 13, 2025

Introduced by M. of A. JENSEN -- read once and referred to the Committee on Governmental Employees -- recommitted to the Committee on Governmental Employees in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT granting retroactive tier II membership in the New York state and local police and fire retirement system to Daniel Rizzo

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Notwithstanding any other provision of law to the contrary,
2 Daniel Rizzo, who was employed with Monroe county sheriff's office and
3 who is currently a member of the New York state and local police and
4 fire retirement system, who through no fault of his own did not become a
5 member of the New York state and local police and fire retirement system
6 on October 19, 2009 when first employed by the Monroe county sheriff's
7 office, shall be deemed to have been a member of the New York state and
8 local police and fire retirement system on such date he commenced his
9 employment and shall be granted Tier II status in the New York state
10 police and fire retirement system, provided that an application is filed
11 with the head of the New York state and local police and fire retirement
12 system within one year from the effective date of this act. Upon the
13 granting of such retroactive membership, Daniel Rizzo shall be granted a
14 refund of any employee contribution made by him to the New York state
15 and local police and fire retirement system which would not have been
16 made had Tier II status been granted in the New York state and local
17 police and fire retirement system on October 19, 2009.

18 § 2. All past services costs associated with the implementation of
19 this act shall be borne by the state.

20 § 3. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD11115-04-6

This bill would provide Daniel Rizzo with a date of membership of October 19, 2009, their date of first employment with the Monroe county sheriff's office, resulting in Tier 2 status in the New York State and Local Police and Fire Retirement System. Daniel Rizzo is currently a Tier 5 member employed by the city of Rochester.

Member contributions will be refunded.

We estimate that the city of Rochester's annual contributions will increase \$7,900 beginning FYE 2027. Annual costs will vary as the billing rates and salary of Daniel Rizzo change.

In addition, there will be an immediate past service cost of \$62,400 borne by the state of New York as a one-time payment. This cost assumes that payment will be made on March 1, 2027.

Summary of relevant resources:

Membership data as of March 31, 2025 was used to measure the impact of the bill, the same data used in the Actuarial Valuations dated April 1, 2025. Distributions and other statistics can be found in the 2025 Report of the Actuary and the 2025 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2025 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The fair value of assets and GASB disclosures can be found in the 2025 Financial Statements and Supplementary Information.

Assumptions, demographics, and other considerations may have been modified to better reflect specific provisions of any proposed benefit change(s).

This fiscal note does not constitute a legal opinion on the viability of the bill, nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated March 23, 2026, and intended for use only during the 2026 Legislative Session, is Fiscal Note Number 2026-133. As Chief Actuary of the New York State and Local Retirement System (NYSLRS), I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member. I am a member of NYSLRS but do not believe it impairs my objectivity.